

24STCV17314 24STCV17314

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-11
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C08%2F11%2F2026
Source SHA-256: d02f73907085647aaaaea8c16b947fd83e228d37a68f5dcf052e575bf762b142f

Case Number: 24STCV17314 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

AMANDA GHOST, et al.,

Plaintiffs,

vs.

REBEL WILSON,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24STCV17314

[TENTATIVE] ORDER DENYING MOTION FOR LEAVE
TO FILE THIRD AMENDED CROSS-COMPLAINT

Dept. 506

8:30 a.m.

August 11, 2026

On

January 13, 2026, the Court sustained a demurrer to the first amended cross-complaint ("FACC") filed by Cross-Complainants Rebel Wilson and Camp Sugar Productions Pty Ltd.

Later,

the Court granted leave to file a second amended cross-complaint ("SACC"), which Cross-Complainants filed on March 16, 2026.

On

July 10, 2026, Cross-Complainants filed a motion for leave to file a third amended cross-complaint ("TACC").

The

Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. (Code Civ. Proc., § 473, subd. (a)(1).) A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and

must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (California Rules of Court, rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).)

Cross-Complainants

provide the Proposed TACC, a redlined copy of the Proposed TACC, and a separate list of changes. (Kramer Decl., Exs. A-B.) The amendments “fall into three [sic] categories: (1) changes made as a result of meet and confer communications with Amanda Ghost’s counsel; (2) addition of newly discovered information; (3) additions and deletions to refine/clarify allegations; (4) correction of typographical and grammatical errors; and (5) changed paragraph numbers. There are no additions or deletions of causes of action.” (Motion at p. 5.) Counsel declares that “the effect of the amendments . . . will be to revise and clarification certain factual allegations, agreement to certain changes requested by Ghost, et al’s counsel in meet and confer communications.” (Kramer Decl. ¶ 9.) The amendments are necessary and proper because “there were new developments after the filing of the Second Amended Cross-Complaint that required modification, namely conduct of the related trial in Australian, obtaining of new recorded evidence with admissions from Amanda Ghost, meet and confer conversations with Cross Defendants’ Ghost, Cameron, and Holden’s counsel, and also discovery of some typographical and grammatical errors that needed to be corrected.” (Kramer Decl. ¶ 10.) The new facts “were discovered in and around the Australian trial proceedings related to this case in the end of April 2026.” (Kramer Decl. ¶ 11.)

Many

of the amendments are not necessary and are, in fact, improper. The Court agrees that some of the attempts to “refine/clarify allegations” are inflammatory and use highly charged rhetoric—much like the language that the Court struck from the FACC. (See Opposition at p. 10.)

The

proposed amendments also improperly attempt to resurrect claims that this Court already dismissed. The Court’s January 13, 2026 Order sustained Amanda Ghost’s demurrer to the FACC’s fraud claims without leave to amend. The SACC omitted Ghost for those causes of action. Nevertheless, the Proposed TACC reintroduces Ghost as a Cross-Defendant on the fourth and fifth causes of action.

Additionally,

Cross-Complainants do not provide any explanation for adding Warner Chappell Music AG LTD as a new Cross-Defendant. It is highly prejudicial for that Cross-Defendant to be added this late in the litigation with a trial date quickly approaching.

While

arguing that there will be no prejudice from the amendment, Cross-Complainants assume that the pending motion to continue trial will be granted: "Granting this motion would not require delaying of the trial because the current trial date already needs to be delayed because of scheduling conflicts, discovery not being completed, and other issues having nothing to do with this Motion and as laid out in detail in the pending Motion to Continue Trial." (Reply at p. 5.) But as of the date of this motion, trial remains scheduled for October 5, 2026.

For

all of these reasons, the Motion for Leave to File Third Amended Cross-Complaint is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court